

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Abigail Carr	Team: Team # 6	CCRB Case #: 200817898	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 12/16/2008 9:15 AM	Location of Incident: West 123rd Street and Adam Clayton Powell Boulevard		18 Mo. SOL 6/16/2010		Precinct: 28
Date/Time CV Reported Tue, 12/16/2008 9:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/16/2008 9:29 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Tarik Sheppard	01654	945351	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kenneth McNair	07895	939002	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Tarik Sheppard	Discourtesy: Officer Tarik Sheppard spoke rudely to § 87(2)(b)	
B . POM Tarik Sheppard	Discourtesy: Officer Tarik Sheppard acted rudely toward § 87(2)(b)	
C . POM Tarik Sheppard	Abuse: Officer Tarik Sheppard threatened to arrest § 87(2)(b)	

Synopsis

On December 16, 2008 § 87(2)(b) filed the following complaint by telephone with the CCRB; he was interviewed at the CCRB on January 5, 2009.

On the morning of December 16, 2008 at approximately 9:15 AM § 87(2)(b) was driving northbound on Adam Clayton Powell Boulevard in Manhattan. § 87(2)(b) passed a marked police vehicle on West 116th Street. § 87(2)(b) was followed by that vehicle and he was stopped at West 123rd Street. Officer Tarik Sheppard of the 28th Precinct issued § 87(2)(b) a summons § 87(2)(a) 160.50. According to § 87(2)(b) Officer Sheppard repeatedly said, "Take the fucking ticket!" (Allegation A) Then Officer Sheppard allegedly threw the ticket and § 87(2)(b) information at § 87(2)(b) (Allegation B) Officer Sheppard then allegedly said, "Get the fuck out of here or I'll arrest you." (Allegation C) § 87(2)(b) was offered mediation which he rejected § 87(2)(b)

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) CCRB Statement (Encl. 5a-d)

§ 87(2)(b) filed the following complaint with the CCRB by telephone on December 16, 2008. He was interviewed at the CCRB on January 5, 2009 § 87(2)(g)

§ 87(2)(b) He is Hispanic, 5'6, 150lbs, with black hair and brown eyes.

On December 16, 2009 at approximately 9:15 AM § 87(2)(b) was driving north bound on Eighth Avenue and stopped at a light at West 114th Street. § 87(2)(b) continued driving and saw a uniformed officer on the right hand side of the street, later identified through investigation as Officer Tarik Sheppard, standing besides his marked police vehicle. § 87(2)(b) continued driving and stopped for a light again at West 118th Street. § 87(2)(b) first noticed a marked patrol car behind him as he was driving between West 122nd and West 123rd Street. § 87(2)(b) was pulled over by the patrol car, which had two officers in it. The area where he was stopped is residential except for the 28th Precinct which is on that street. The driver of the police car, Officer Tarik Sheppard, got out of the police car and approached § 87(2)(b) The other officer, identified through investigation as Officer McNair, also got out of the car but § 87(2)(b) was only able to see his general body shape. Officer Sheppard, who approached his car was described as male, black, 5'9, 180 lbs in his mid thirties. His hair was dark and short and he had dark eyes. He had no glasses tattoos or facial hair. § 87(2)(b) did not notice many people on the street other than construction workers and police officers across the street in front of the 28th Precinct.

Officer Sheppard approached § 87(2)(b) driver's side window and asked § 87(2)(b) loudly, "What's the matter with you this morning?" § 87(2)(b) replied, "What do you mean?" Officer Sheppard then said, "You were kind of speeding, and you took the red light on West 117th Street." Then Officer Sheppard asked § 87(2)(b) "What's the city speed limit?" § 87(2)(b) replied, "I know that the city speed limit is 30 miles per hour, and I was doing less than 30 miles per hour and I did not take a red light!" Officer Sheppard replied aggressively, "Are you saying that I'm crazy and that I didn't see what I saw?" § 87(2)(b) did not respond and just gave him his license, registration, and insurance cards. He also had a PBA card that belongs to his § 87(2)(b) which he offered to Officer Sheppard. Officer Sheppard told § 87(2)(b) that he did not want the PBA card and then he went back to his vehicle. Officer Sheppard stayed in his vehicle for 15 to 20 minutes.

Officer Sheppard returned § 87(2)(b) vehicle and said, "Take the fucking ticket!" four times. § 87(2)(b) said he was just sitting in his car and that there was not enough time for him to reach out his hand. When § 87(2)(b) reached up to grab the ticket, Officer Sheppard flung the ticket and § 87(2)(b) s license registration and ID into the car in the direction of § 87(2)(b) scattering them. § 87(2)(b) then said, "What was that for?" because § 87(2)(b) thought Officer Sheppard was being disrespectful. Officer

Sheppard replied, "Get the fuck out of here before I arrest you." § 87(2)(b) replied fairly calmly, "What you've got to do is go out there and find some real criminals and do your job." Then § 87(2)(b) quickly pulled away. The RMP followed § 87(2)(b) to West 126th and Eighth Avenue before turning. § 87(2)(b) had the summons with him for the interview and he plans to plead not guilty.

Results of Investigation

Identification of Officers Interviewed

Officer Tarik Sheppard was identified based on the summons he issued to § 87(2)(b) which § 87(2)(b) brought to his interview. When he was interviewed Officer Sheppard identified his partner as Officer McNair.

PO Sheppard Memobook (Encl. 6a)

On December 15, 2008 PO Sheppard made the following memobook entry: At 0909 individual almost struck officer exiting his vehicle. The motorist was disrespectful, had PBA card. Served summons but motorist refused to take ticket and license and registration card.

Summons (Encl. 7a)

On December 15, 2008 at 9:00 AM PO Sheppard issued a summons to § 87(2)(b) for § 87(2)(a) 160.50

PO Sheppard CCRB Statement (Encl. 8a-b)

Officer Tarik Sheppard is a male, black, 6'5, 225 lbs, with black hair and brown eyes. On December 16, 2009 Officer Sheppard's assignment was patrol sector Adam, and he was driving a marked RMP with his partner Officer McNair. At approximately 9:15 AM Officer Sheppard, who was in full uniform, was entering his marked police vehicle between West 115 and West 116th Streets on Eighth Avenue where he had been writing a parking summons. When Officer Sheppard turned around, he saw a vehicle speeding toward him. The car did not slow down, crossed the double yellow lines when he went around the stopped RMP, and almost hit Officer Sheppard. Then Officer Sheppard saw the car go through two red lights, one on West 116 and one on West 117th Street. Officer Sheppard then entered his vehicle and followed the car. It took the officers six blocks to catch up to the car and they pulled it over on West 123rd Street. When he approached the stopped vehicle Officer Sheppard informed § 87(2)(b) of the violation and issued him a summons. § 87(2)(b) had a PBA card and began to say "disrespectful" things such as, "Why don't you find some real criminals?"

When Officer Sheppard tried to give § 87(2)(b) back his information and his summons, he refused to take the documents. Officer Sheppard said, "Here is your license and here is your summons." He told § 87(2)(b) this four times but he just folded his arms and stared into space. Officer Sheppard was standing in traffic so he tossed the summons and information over § 87(2)(b) into the passenger seat. § 87(2)(b) then said, "Find some real crime! Why don't you catch some real criminals? I have family on the force!" Officer Sheppard replied, "If you have a problem with this you can call the 28th Precinct." Then he gave him the precinct's number. Officer Sheppard heard § 87(2)(b) yelling and getting out of his vehicle, so he told § 87(2)(b) that if he followed him back to the police vehicle then he would arrest him. Then Officer Sheppard returned to his vehicle. § 87(2)(b) stayed in his vehicle and drove off. Officer Sheppard never cursed at § 87(2)(b) nor did he speak to him in an angry way. Officer Sheppard never raised his voice when speaking to § 87(2)(b). Officer McNair never spoke to § 87(2)(b).

PO McNair Memobook (Encl. 9a)

On December 15, 2008 PO McNair entered the following in his memobook: At 0909 a car was stopped in front of 2271 Eighth Avenue. At 0920 a summons was issued.

PO McNair CCRB Statement (Encl. 10a-b)

Officer Kenneth McNair is male, black, 6'3, 265 lbs, with black hair and brown eyes. He was interviewed at the CCRB on February 11, 2009. On December 15, 2008 at approximately 9:15 AM Officer McNair was in uniform in a marked RMP working with Officer Sheppard on sector patrol. On December 15, 2008 Officer McNair and his partner, Officer Sheppard, were on Eight Avenue between 116th and 115th Street issuing summonses to cars that were parked illegally. When Officer Sheppard returned to the marked RMP from issuing a summons and began getting in, a vehicle sped by and almost struck Officer Sheppard. When Officer Sheppard got into the RMP Officer McNair said, "Where is this guy speeding off to?" The officers followed the car and observed the motorist run two red lights. They indicated that he pull over on 122nd street. He complied. Both officers exited their RMP and Officer Sheppard approached the driver side and Officer McNair approached the passenger side of § 87(2)(b) vehicle. Officer McNair never spoke to § 87(2)(b). He could not hear what was being said. Both officers then went back to their vehicle. They checked his registration and looked for warrants. The car came up valid and Officer Sheppard wrote out a summons. They then returned to the vehicle. § 87(2)(b) refused to take the summons when Officer Sheppard offered it to him and Officer Sheppard put it on the dashboard. The entire incident took nine minutes, and Officer McNair did not recall hearing Officer Sheppard say, "Take the fucking ticket before I arrest you."

NYPD Documents (Encl. 11a-i and 12a-k)

There was no SPRINT for this incident. The 28th Precinct tour 2 roll call indicates that Officer Sheppard and Officer McNair were working on December 15, 2008.

Summons Disposition

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian Record of Criminal Convictions

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB History (Encl. 2a-b)

Officer Tarik Sheppard has never been disciplined as the result of a CCRB investigation. This is § 87(2)(b) first complaint at the CCRB.

Conclusions and Recommendations

Officer Identification

Officer Sheppard was identified based on the summons that he issued to § 87(2)(b). When he was interviewed Officer Sheppard identified his partner as Officer Kenneth McNair. This was confirmed by the roll call. Both officers acknowledged being involved in this incident and the pedigree information provided by § 87(2)(b) for Officer Sheppard, Officer (Black, 5'9, 180 lbs in his mid thirties, dark hair and eyes with no glasses tattoos or facial hair) approximated his actual appearance.

Undisputed Facts

It is undisputed that Officer Tarik Sheppard issued a summons to § 87(2)(b) which he tossed into his car. It is undisputed that Officer Sheppard threatened to arrest § 87(2)(b).

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

No one witnessed this incident other than § 87(2)(b) and Officer Sheppard. Officer McNair stood far enough away that he could not hear the interaction between § 87(2)(b) and Officer Sheppard so any verbal interactions between Officer Sheppard and § 87(2)(b) were not heard by any other party.

§ 87(2)(b) alleged that Officer Sheppard repeatedly said, “Take the fucking ticket.” Officer Sheppard denied saying this, and his partner, Officer McNair, stated that he was unable to hear the interaction.

Both parties agreed that Officer Sheppard had to tell § 87(2)(b) to take the ticket four times. § 87(2)(g) § 87(2)(b) stated that Officer Sheppard had enough time to say, “Take the fucking ticket!” four times, but within that time he did not have enough time to reach out his hand for the ticket. § 87(2)(g)

It is undisputed that Officer Sheppard tossed the summons, license, registration and insurance into § 87(2)(b) car. Officer Sheppard stated that this was because § 87(2)(b) refused to take the ticket, and he neatly tossed it across him so that he could get out of the road since he was standing in traffic. § 87(2)(b) stated that Officer Sheppard aggressively threw the documents at him, as opposed to simply tossing them into the passenger seat, and that they scattered all over the car. According to Officer McNair, Officer Sheppard placed the documents on § 87(2)(b)'s dashboard. Officer McNair's recollection of this part of the incident deviates from both Officer Sheppard and § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that Officer Sheppard stated, “Get the fuck out of here or I'll arrest you.” Officer Sheppard stated that he said, “If you follow me to my car I will arrest you.” It is clear that arrest was mentioned in this situation. § 87(2)(g)

Allegation A: PO Tarik Sheppard spoke rudely to § 87(2)(b)

Allegation B: PO Tarik acted rudely towards § 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]

Allegation C: PO Tarik Sheppard threatened to arrest § 87(2)(b) [Redacted]

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
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[Redacted]
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Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: